

		29. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiffs' motion for approval is continued to <u>October 29, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
6	Segura v. Comprehensive Mobile Care, LLC 2026-01541502	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$225,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service attached to the notice of motion (ROA 18) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The class and PAGA periods must have firm end dates to enable the court to evaluate the fairness and reasonableness of the settlement. 3. The parties should provide an estimate of the number of aggrieved employees.

		4. The parties should provide the estimated high and low class payments (exclusive of any PAGA amounts) and the estimated average, high and low PAGA payments. 5. Plaintiff should state her estimated total compensation to be received (excluding for any enhancement payment and including for any individual claims). 6. Paragraph 2.s should include disputes. 7. The court prefers the Notice Deadline be extended for any notices that are remailed. Are there any unique circumstances necessitating the provision that the Notice Deadline not be extended for any remailed notices? 8. The phrase "Released Class Claims" in paragraph 2.t does not appear to be defined in the settlement agreement. 9. The "Released Parties" provision in paragraph 2.x is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliated and related companies," and "each of their past and present assigns, insurers, shareholders, partners, agents, advisors, accountants, attorneys, representatives, trustees, heirs, administrators, overseeing officials, owners, officers, directors, managers, employees, and administrators, and any individual or entity that could be liable for any of the Released Claims." The phrase "but not limited to" should also be removed. 10. The settlement agreement uses a variety of capitalized terms (some defined, some not) to apparently refer to the same people or topics. E.g., "Settlement Class Members," "Class Members" and "Participating Individuals"; "Released Class Claims," "Released Claims." The settlement agreement should be revised to (i) define all capitalized terms and (ii) remove different terms that duplicate other terms that refer to the same people or topics. 11. Paragraph 18 should be revised to state that the class members' and aggrieved employees' releases do not become effective until defendant has fully funded the gross settlement amount and any other amounts due under the settlement agreement. 12. The following phrase should be removed from paragraph 18: "and except as to such rights or claims as may be created by this by this [<i>sic</i>] Settlement Agreement." 13. The class members' release in paragraph 18 is overbroad and contains unnecessary duplicative language. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint.
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		approval hearing, the court is unlikely to approve attorneys' fees exceeding 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist in this case. 23. Plaintiff's counsel seeks costs not to exceed \$11,732.99. Plaintiff's counsel should submit an itemized list of costs incurred to date. Nonrecoverable items such as postage, mileage and legal research charges should not be included. 24. Plaintiff Segura seeks an enhancement award of \$10,000 in part because "[t]he service award is intended to serve as consideration in exchange for Plaintiff's general release of claims." Hogg Decl. (ROA 19) ¶ 86. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In addition, while the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement payment in excess of \$5,000 absent unique circumstances. If unique circumstances warrant the higher amount plaintiff seeks, plaintiff should submit additional information explaining those circumstances. 25. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. 26. Was the settlement submitted to the LWDA in accordance with Labor Code § 2699(s)(2)? 27. Plaintiff must submit a copy of the notice letter to the LWDA. See Settlement Agreement ¶ 9. 28. The parties (plaintiff and defendant) should state in separate declarations filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.
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As to the notice:

29. The notice should be revised consistent with the above.
30. The title of the notice should be revised to state, "NOTICE OF CLASS AND PAGA ACTION SETTLEMENT."
31. As stated above, the court prefers the notice be accompanied by separate objection and dispute forms for those class members wishing to object or dispute the number of workweeks and/or pay periods. The notice should be revised accordingly to address the use of the separate forms.
32. The notice should advise the aggrieved employees that they are bound by the PAGA release even if they do not cash their checks.
33. The notice should not contain footnotes.
34. In the first paragraph on page 2, all text after the first sentence should be removed.
35. The first sentence of the second paragraph on page 2 should be removed, as should the last sentence of the same paragraph.
36. The following phrase should be removed from the third paragraph on page 2: "(in generic form) can be viewed at the Courthouse, or can be obtained by containing Phoenix Class Action Administration Solutions." The notice should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted on the settlement administrator's website for at least 180 days. This information can be stated in section 10 or elsewhere in the notice, and need not be stated more than once in the notice.
37. The following phrase should be removed from the first paragraph of section 3: "to the extent not already included into the attorneys' costs."
38. The phrase in the first paragraph of section 3 "in the amount of" after "a service award" and before "\$10,000" should be replaced with "not to exceed."
39. Why is "NET" capitalized in first paragraph of section 3?
40. As stated above, the method of calculating the individual PAGA payments stated in section 4 of the notice is inconsistent with the settlement agreement.
41. If the parties intend the individual PAGA payments to be calculated pro rate based on pay periods (as stated in the notice), the dispute procedure stated in the settlement

		agreement and the notice should include pay period disputes. 42. The effective date of the class members' and aggrieved employees' releases stated in section 5 should be revised as stated above. 43. As stated above, an objecting class member should not mail his or her objection to the court. Section 6 should be revised accordingly. 44. The following phrase should be removed from the first sentence of the first paragraph on page 6: "If you mail a written objection." 45. The second and third sentences of the first paragraph on page 6 should be removed, as should the last sentence in the same paragraph. 46. The second paragraph on page 6 should be removed. 47. The second bolded paragraph in the exclusion form should be removed, as should the third sentence of last paragraph on the first page of the exclusion form. 48. The exclusion form should be formatted to fit on one page. 49. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached as exhibit to the proposed order. <u>As to the proposed order (ROA 25):</u> 50. The proposed order should be revised consistent with the above. 51. Counsel information should be removed from the caption page of the proposed order. 52. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. 53. The court department (CX105) should be updated throughout the proposed order. 54. Paragraph 3 of the proposed order should also state that the court finds on a preliminary basis the settlement to be fair, adequate, and reasonable, and in the best interests of the class members and aggrieved employees. 55. The proposed order should state the gross settlement amount, the not-to-exceed amounts of attorneys' fees, attorney costs, plaintiff's enhancement award and settlement administration fees, and the total PAGA penalties allocation (including the specific 65% / 35% allocations).
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7	Steidl v. Z3 Plumbing Corp. 2023-01365173	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$75,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Why is the defendant funding the settlement funds in three installments? Settlement Agreement ¶¶ 1.10, 3.1. If defendant is paying the settlement in installments due to